

26STCV23442 26STCV23442

County: los-angeles

Division: Civil Law and Motion

Department: 311

Hearing date: 2026-08-21

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Case Number: 26STCV23442 Hearing Date: August 21, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

26STCV23442

B.H,

et al. vs GOVIND JIVANDA SETH, M.D, et al.

August

21, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFFS' MOTION FOR LEAVE PERMITTING PLAINTIFFS TO PROCEED
BY INITIALS.

RULING:

The Court continues the Motion
hearing to September 4, 2026, at 8:30 a.m., in Department 311.

The Court orders
electronically sealed against any public availability (1) the Plaintiffs' whole
"CONFIDENTIAL STATEMENT OF PLAINTIFFS' TRUE NAMES..." received on July 27, 2026,
and (2) Defendants' entire "DECLARATION OF TRISHALA PARIKH IN SUPPORT OF
DEFENDANTS MAXIMUS HEALTH, INC. AND MAXIMUS MEDICAL CA, P.C.'S PROCEDURAL
OPPOSITION TO PLAINTIFFS' APPLICATION FOR ORDER PERMITTING PLAINTIFFS TO
PROCEED BY INITIALS" filed on August 19, 2026.

Additionally, the Clerk
must file this Order, maintain the above-specified filings in a secure manner,
and clearly identify those two records as ordered sealed on August 21, 2026. Further,
the appropriate access controls must be established to ensure that only the
Court's authorized persons may access the sealed portions of the record.

No other records or
documents are to be sealed at this time.

No person other than the Court
is authorized to inspect the sealed records.

Plaintiff to give notice.

I.
BACKGROUND

On July 27, 2026, B.H.
and S.L.H. (Plaintiffs) filed a Complaint against GOVIND JIVANDA SETH, M.D.; MAXIMUS
HEALTH, INC.; and, MAXIMUS MEDICAL CA, P.C. (Defendants), listing Causes of
Action for:

1.
MEDICAL NEGLIGENCE

2.
MEDICAL NEGLIGENCE — FAILURE TO OBTAIN
INFORMED CONSENT

3.

CORPORATE NEGLIGENCE (NEGLIGENT
CREDENTIALING, SUPERVISION, PROTOCOL DESIGN, AND RETENTION)

4.

FRAUDULENT CONCEALMENT

5.

INTENTIONAL MISREPRESENTATION

6.

NEGLIGENT MISREPRESENTATION .

7.

VIOLATION OF THE CONSUMERS LEGAL REMEDIES
ACT (CIV. CODE § 1750 ET SEQ.) — INJUNCTIVE RELIEF

8.

UNLAWFUL, UNFAIR, AND FRAUDULENT BUSINESS
PRACTICES (BUS. & PROF. CODE § 17200 ET SEQ.)

9.

LOSS OF CONSORTIUM.

Plaintiffs allege that Plaintiff

B.H. suffered severe medical complications as a result of side effects from prescriptions
of two pro-thrombotic medications.

On July 27, 2026, Plaintiffs

filed the Motion for Leave Permitting Plaintiffs to Proceed by Initials, on
grounds that private genetic results should not be disclosed. And Plaintiffs
request that a confidential statement of Plaintiffs' true names be lodged with
the Court and sealed.

To date Defendant has not
responded to the Complaint.

II.

LEGAL STANDARD

Parties may proceed

anonymously where information that is private, sensitive, actually embarrassing, defamatory, or that creates a risk of employer retaliation. (See, e.g., *Roe v. Smith* (2025) 116 Cal.App.5th 227, 240-246.)

“All electronic records

must be made reasonably available to the public in some form, whether in electronic or in paper form, except those that are sealed by court order or made confidential by law.” (Cal. Rules of Court, rule 2.503.) (Underscoring added.)

Sealing orders must:

“(A) Specifically state the facts that support the findings; and ... (B) Direct the sealing of only those documents and pages, or, if reasonably practicable, portions of those documents and pages, that contain the material that needs to be placed under seal. All other portions of each document or page must be included in the public file.” (Glassdoor, Inc. v. Superior Court (2017) 9 Cal.App.5th 623, 638 [quoting Cal. Rules of Court, rule 2.550(e)(1)].)

“(1) If the sealed record

is in electronic form, the clerk must file the court's order, maintain the record ordered sealed in a secure manner, and clearly identify the record as sealed by court order on a specified date. [¶] (2) The order must state whether--in addition to the sealed records--the order itself, the register of actions, any other court records, or any other records relating to the case are to be sealed. [¶] (3) The order must state whether any person other than the court is authorized to inspect the sealed record.” (Cal. Rules of Court, rule 2.551(e)(1)-(3).) “If the sealed records are in electronic form, appropriate access controls must be established to ensure that only authorized persons may access the sealed records.” (Cal. Rules of Court, rule 2.551(f).)

III.

ANALYSIS

Plaintiffs provide the

following explanation for anonymity and sealing:

“Plaintiff

B.H.'s genetic test results, an inherited genetic condition shared by his blood relatives who are not parties to this action, an autoimmune diagnosis, a psychiatric diagnosis, and the details of hormone therapy; that Plaintiffs have a constitutionally protected privacy interest in that information under article I, section 1 of the California Constitution; that Defendants already know Plaintiffs' identities and will suffer no prejudice; and that the public's interest in the substance of these proceedings is fully served without publication of Plaintiffs' names."

(Motion, 2:1-7.)

Defendants filed an Opposition to request a continuance to oppose, and a Declaration addressing identity-revealing emails exchanged between the parties regarding this Motion.

First, arguably, Defendants were not entitled to notice. "[S]ection 1014 of the Code of Civil Procedure dispenses with the requirements of 'service of notice of papers' where a defendant has not appeared." (Thompson v. Cook (1942) 20 Cal.2d 564, 569.) "After appearance, a defendant or the defendant's attorney is entitled to notice of all subsequent proceedings of which notice is required to be given." (Code Civ. Proc., § 1014.) However, due-process principles require notice and an opportunity to be heard as to those having an interest in a matter. (Monarch Healthcare v. Superior Court (2000) 78 Cal.App.4th 1282, 1286.)

Second, perhaps, Defendants have made a general appearance. "A general appearance occurs where a party, either directly or through counsel, participates in an action in some manner which recognizes the authority of the court to proceed. It does not require any formal or technical act." (Mansour v. Superior Court (1995) 38 Cal.App. 4th 1750, 1756-1757 ["responses on the case management statement and their active participation in the evaluation conference constitute a general appearance in the case."]. Accord, Renoir v. Redstar Corp. (2004) 123 Cal.App.4th 1145, 1153.) A general appearance may be made in a variety of ways and need not have been in conformance with Code of Civil Procedure section 1014. (Air Mach. Com SRL v. Superior Court (2010) 186 Cal.App.4th 414, 420.) Notwithstanding a statement of a 'special appearance' on a motion, a movant makes a general appearance by seeking relief based on anything other than lack of personal jurisdiction. (Great W. Casinos, Inc. v. Morongo Band

of Mission Indians (1999) 74 Cal.App.4th 1407, 1416. Cf. MacPherson v. MacPherson (1939) 13 Cal.2d 271, 275 ["purported special appearance had in fact constituted a general appearance."].) "A general appearance by a party is equivalent to personal service of summons on such party." (Renoir v. Redstar Corp. (2004) 123 Cal.App.4th 1145, 1149-1150. Accord, Canaan Taiwanese Christian Church v. All World Mission Ministries (2012) 211 Cal.App.4th 1115, 1126.)

As for the Motion merits, courts should consider applicable factors in deciding whether a party can proceed under a fictitious name in a civil case. (Department of Fair Employment & Housing v. Superior Court (2022) 82 Cal.App.5th 105, 110-113 ["court must apply the overriding interest test and take into account all considerations relevant to determining whether the public's right of access is outweighed by the employee's privacy interest...."].)

There is law specifically providing that genetic information sometimes is to be inaccessible. (See, e.g., Genetic Information Nondiscrimination Act (GINA) 42 USC 2000ff, et seq.) " 'Genetic information' includes information about a person's genetic tests, or a family member's genetic tests, diseases or disorders. [Gov.C. § 12926(g)(1)]" (Cal. Prac. Guide Civ. Pro. Trial Claims and Def., § 13:123 [available on Westlaw].)

Generally, "medical records are private." (Los Angeles Gay and Lesbian Center v. Superior Court (2011) 194 Cal.App.4th 288, 308.) Patients have a reasonable expectation of privacy as to their medical information that is not directly relevant to a particular condition the patient has placed in issue. (California Consumer Health Care Council v. Kaiser Foundation Health Plan, Inc. (2006) 142 Cal.App.4th 21, 31.)

"[E]ven when a plaintiff files an action that places his or her medical records at issue, waivers of constitutional rights are narrowly construed and not lightly found." (Bearman v. Superior Court (2004) 117 Cal.App.4th 463, 473.) Privacy interests in physician's files may overly broadly include information about symptoms, family history, diagnoses, tests, and treatment, et cetera. (County of Los Angeles v. Superior Court (2021) 65 Cal.App.5th 621, 641.)

The redacting of personal information before disclosure may avoid privacy issues. (E.g., *Alch v. Superior Court* (2008) 165 Cal.App.4th 1412, 1437 [judges should consider redacting, for assuaging privacy concerns]; *Weingarten v. Superior Court* (2002) 102 Cal.App.4th 268, 278 [“the court should examine the tax returns in chambers and redact any information that relates solely to” the nonparty’s private information]; *Board of Trustees of Cal. State Univ. v. Superior Court* (2005) 132 Cal.App.4th 889, 902 [after order requiring redacting of personal information from documents, court did not need an in camera inspection]. Cf. *In re Gina S.* (2005) 133 Cal.App.4th 1074, 1088 [in juvenile court, information “could easily be redacted to remove any confidential information that does implicate ... privacy interests.”]. But see *Ombudsman Services of No. Cal. v. Superior Court* (2007) 154 Cal.App.4th 1233, 1251 [error to consider redacting private information, where no relevance shown], disapproved on other grounds by *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557.)

Opinions have reasoned that third party privacy rights were adequately protected by orders requiring that identities be redacted from the requested documents, where there was no showing that disclosed information could lead to identifications. (See *Padron v. Watchtower Bible & Tract Soc’y of New York, Inc.* (2017) 16 Cal.App.5th 1246, 1270-1271; *Doe v. United States Swimming, Inc.* (2011) 200 Cal.App.4th 1424, 1438 [“failed to provide any explanation how such information would readily identify....”].)

Additionally, “a trial court may issue a protective order conditioning discovery ‘on terms and conditions that are just’ such as requiring confidentiality and prohibiting use outside a given case.” (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 549.) Judges may issue protective orders restricting disclosure of information to counsel for parties requesting discovery, and limiting the use to lawsuit purposes. (*Moskowitz v. Superior Court* (1982) 137 Cal.App.3d 313, 318-319, disapproved on other grounds by *Williams v. Superior Court* (2017) 3 Cal.5th 531, 557.)

IV.

CONCLUSION

Generally, a trial court's exercise of discretion granting a request for a continuance will be upheld if based on a reasoned judgment and in compliance with applicable principles and policies. (Advantec Group, Inc. v. Edwin's Plumbing Co., Inc. (2007) 153 Cal.App.4th 621, 630.)

The Court continues this Motion hearing, considering recent defense filings.

Defendants may serve and file supplemental opposing documents at least 10 days before the continued hearing date. Plaintiffs may serve and file a reply at least 7 days before that date.